

Another Anniston councilman arrested on ethics charge

Jay Jenkins charged after vote on city's move to Anniston Star building

By Tim Lockette, Star Staff Writer, tlockette@annistonstar.com

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Anniston City Councilman Jay Jenkins said Tuesday that he was arrested Monday after a grand jury charged him with using his office for personal gain.

The Alabama Ethics Commission earlier this year referred Jenkins to prosecutors after receiving a complaint about his vote in favor of leasing The Anniston Star's building on McClellan Boulevard as a temporary home for City Hall. The councilman's wife, Kim Jenkins, works in the newspaper's advertising department.

"I wasn't happy with the grand jury's decision, but I respect the process, and I believe I'll be vindicated," Jay Jenkins said.

The council in December 2018 voted 4-1 to move city offices to a portion of The Anniston Star's building, part of a complicated set of downtown changes designed to make room for a new federal courthouse. The council gave its final approval to the lease in a 3-2 vote in March.

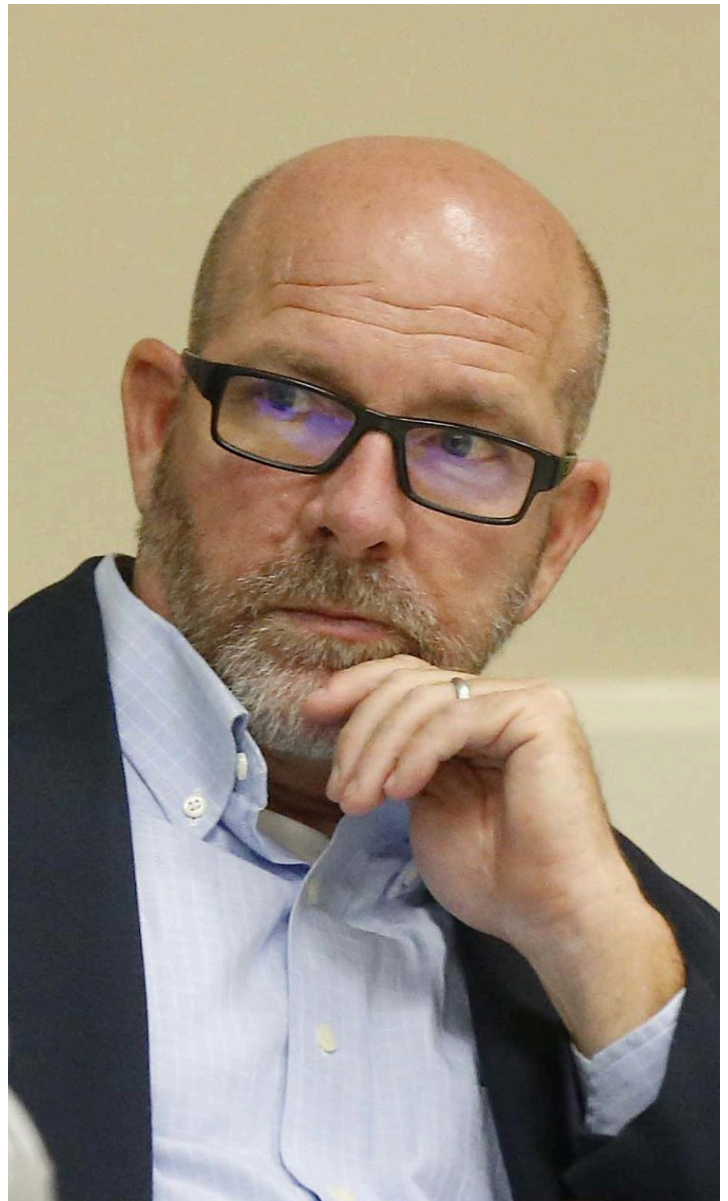
That courthouse is set to be built on the former site of City Hall on Gurnee Avenue. The city has agreed to receive the old federal courthouse building on Noble Street in exchange for the City Hall site, a building that could eventually become a new site for city government offices. But the city still needed a building to house its offices while the old City Hall is razed and the new courthouse is built.

The council toured five sites last year, and eventually decided to lease The Star's building for \$275,000 per year. City offices now take up much of the building's upper floor, while The Star's newsroom is in a separate wing of that floor and the newspaper's printing press operates on the bottom floor.

Attempts to reach District Attorney Brian McVeigh for comment were unsuccessful. Jenkins' arrest has yet to appear in online court records, not an uncommon occurrence when arrests are less than a day old.

Section 36-25-5 of the Code of Alabama states that "no public official or public employee shall use or cause to be used his or her official position or office to obtain personal gain for himself or herself, or family member of the public employee or family member of the public official, or any business with which the person is associated unless the use and gain are otherwise specifically authorized by law."

Intentional violations of that law are Class B felonies, punishable by 2 to 20 years in prison. Reckless violations of law are Class A misdemeanors, punishable by up to a year in jail.



Councilman Jay Jenkins during a City Council meeting at the Anniston City Meeting Center.

(Stephen Gross/The Anniston Star)

A misdemeanor conviction under the ethics law doesn't necessarily remove a council member from office. Anniston Councilman Ben Little, convicted in October on a misdemeanor charge of recklessly voting on a list of nuisance properties that included his own house, was sentenced to probation last week. He remains on the council.

Jenkins said he faces arraignment Jan. 16.

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